

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2022-008247

BETWEEN:

MR AND MRS SIMON ALDRIDGE

Appellant

- and -

MR TIMOTHY CRAWFORD

Respondent

APPELLANT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Appellants seek declaratory and injunctive relief regarding the boundary between their property and the Respondent's, contending that the Respondent has encroached upon their land by approximately 2.4 metres along a 45-metre boundary.

B. RELEVANT FACTS

2. The Appellants purchased their property, Meadow View, in 2008.
3. In 2022, the Appellants commissioned a survey which revealed that the Respondent's fence encroaches 2.4 metres onto their title.
4. Historical aerial photographs from 1985 show the original boundary line corresponding to the Appellants' title plan.
5. The Respondent erected the current fence in 2005 without the Appellants' predecessors' consent.
6. The encroachment includes part of the Appellants' garden and a mature oak tree.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - Land Registration Act 2002
 - Limitation Act 1980, s.15

D. SUBMISSIONS

8. The true boundary is as shown on the Appellants' title plan.
9. The fence does not represent the legal boundary.

10. Any adverse possession claim fails as the period did not expire before the 2003 Act came into force.

11. The Respondent has not applied to Land Registry as required by Schedule 6 LRA 2002.

E. AUTHORITIES

12. The following authorities are relied upon:

- Neilson v Poole [1969] 20 P&CR; 909
- Lee v Barrey [1957] Ch 251
- Fisher v Winch [1939] 1 KB 666

F. RELIEF SOUGHT

13. The Appellant respectfully requests that this Court:

- Declaration as to the true boundary
- Injunction requiring removal of encroaching structures
- Damages for trespass
- Costs

Emma Wilson KC

David Edwards

18 May 2022

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